

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: February 25, 2025 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV444146	Richard Deane et al. v. Lakeview Condominium Homeowners' Association et al.	Click on LINE 1 or scroll down for ruling.
LINE 2	21CV391798	Al Nievas v. County of Santa Clara	Click on LINE 2 or scroll down for ruling.
LINE 3	22CV396170	Christian Humanitarian Aid, Inc. v. AM Star Construction, Inc. et al.	Click on LINE 3 or scroll down for ruling.
LINE 4	23CV427904	Eric F. Hartman v. Lynn Dornon Kuehn	Click on LINE 4 or scroll down for ruling in lines 4-5.
LINE 5	23CV427904	Eric F. Hartman v. Lynn Dornon Kuehn	Click on LINE 4 or scroll down for ruling in lines 4-5.
LINE 6	24CV435382	Leonel F. Veliz Gutierrez v. April Fitz	Click on LINE 6 or scroll down for ruling.
LINE 7	23CV416520	Juan C. Hernandez v. Guadalupe Hernandez	Motion to expunge lis pendens under Code of Civil Procedure section 405.30: notice is proper, and the motion is unopposed. The court finds good cause to GRANT the motion, as the prior dismissal of the complaint means that plaintiff cannot establish the probable validity of his real property claim. (Code Civ. Proc., § 405.32.) Moving party to prepare proposed order.

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Calendar Line 1

Case Name: *Richard Deane et al. v. Lakeview Condominium Homeowners' Association et al.*

Case No.: 24CV444146

I. BACKGROUND

This is an action arising out of an employment dispute between plaintiffs Richard Deane and Christopher Rivas (hereinafter, "Plaintiffs") and defendants Lakeview Condominium Homeowners' Association ("Lakeview"), Jeff Vinson ("Vinson"), and various Does.

Plaintiffs filed the original and still-operative complaint in this matter on July 29, 2024. The complaint states six causes of action: (1) Failure to Pay Minimum Wage (Labor Code Section 1194), brought by Deane only; (2) Nonpayment of Wages (Labor Code Sections 201 and 202), brought by Deane only; (3) Failure to Provide Time Records and Itemized Statements (Labor Code Sections 226 and 1174), brought by Deane only; (4) Failure to Pay Wages Upon Discharge (Labor Code Sections 201, 202 and 203), brought by Deane only; (5) Retaliation (Labor Code Section 1102.5), brought by both Plaintiffs; and (6) Termination in Violation of Public Policy, brought by both Plaintiffs. There are no exhibits attached to the complaint.

Currently before the court is a motion to strike portions of the complaint brought by Lakeview and Vinson (hereinafter, "Defendants"). Defendants filed the motion on October 21, 2024. Plaintiffs filed an opposition on November 26, 2024. A reply (from Vinson only) was filed on February 10, 2025.¹

II. REQUEST FOR JUDICIAL NOTICE

Plaintiffs have submitted a request for judicial notice in support of their opposition to the motion. "Judicial notice may not be taken of any matter unless authorized or required by law." (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307 [citing *People v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2].) It is the court, and not the parties, that determines relevance. Evidence Code section 453, subdivision (b), requires a party seeking notice to "[furnish] the court with sufficient information to enable it to take judicial notice of the matter."

Plaintiffs request judicial notice of a civil complaint filed against Lakeview (but not Vinson) in the U.S. District Court for the Northern District of California. The court DENIES the request, as this document is irrelevant to the court's consideration of the motion to strike.

¹ Lakeview obtained separate counsel after the filing of the motion, on December 12, 2024.